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STATE OF RHODE ISLAND

IN GENERAL ASSEMBLY

JANUARY SESSION, A.D. 2026

A N A C T

RELATING TO PROPERTY -- RESIDENTIAL LANDLORD AND TENANT ACT

Introduced By: Representatives Speakman, Ajello, Morales, Felix, Alzate, Stewart, Cruz,
Furtado, and Giraldo
Date Introduced: January 15, 2026

Referred To: House Judiciary

It is enacted by the General Assembly as follows:

1 SECTION 1. Chapter 34-18 of the General Laws entitled "Residential Landlord and Tenant
2 Act" is hereby amended by adding thereto the following section:
3 **34-18-63. Prohibition on algorithmic rent setting.**
4 (a) Definitions. As used in this section:
5 (1) "Nonpublic competitor data" means information not available to the general public
6 including, but not limited to, actual rent amounts, occupancy levels, lease start and end dates, or
7 other similar data, regardless of whether the information is:
8 (i) Attributable to a specific competitor or anonymized; and
9 (ii) Derived from, shared by, or otherwise provided by another person or entity that
10 competes in the same or a related residential rental market.
11 (2) "Revenue management device" means a device, system, or software, commonly known
12 as revenue management or rent optimization software, that uses one or more programmed or
13 automated processes to perform calculations using nonpublic competitor data concerning local or
14 statewide rental rates or occupancy levels for the purpose of advising a landlord on:
15 (i) Whether to leave a residential dwelling unit vacant; or
16 (ii) The amount of rent that the landlord may charge or obtain for a residential dwelling
17 unit.
18 The term "revenue management device" includes any product or service that incorporates
19 such a device, but does not include:

1 (A) A report or publication that presents existing rental data in an aggregated or historical
2 manner and does not recommend or determine rental rates or occupancy levels for future leases; or

3 (B) A product or system used solely for the purpose of establishing rent or income limits
4 in accordance with the guidelines of a local, state, or federal affordable housing program.

5 (b) Prohibited conduct.

6 It shall be unlawful for any person or entity to use a revenue management device or
7 nonpublic competitor data to set, recommend, or determine rental rates or occupancy levels for
8 residential dwelling units within the state.

9 (c) Enforcement.

10 (1) A violation of this section shall constitute an unfair or deceptive trade act or practice
11 under chapter 13.1 of title 6.

12 (2) The attorney general is authorized to investigate and enforce this section and to seek all
13 remedies available under chapter 13.1 of title 6, including injunctive relief, civil penalties,
14 restitution, and costs.

15 (3) Nothing in this section shall be construed to limit any private right of action otherwise
16 available under state law.

17 SECTION 2. This act shall take effect upon passage.

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EXPLANATION
BY THE LEGISLATIVE COUNCIL
OF
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RELATING TO PROPERTY -- RESIDENTIAL LANDLORD AND TENANT ACT

- 1 This act would amend the residential landlord and tenant act to prohibit the use of
2 algorithmic renting-setting software that relies on nonpublic competitor data to determine rental
3 prices or occupancy levels for residential dwelling units in Rhode Island.
4 This act would take effect upon passage.

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